

ACCIDENT REPORT

K-WC 1101-A (Rev. 10-13)

– SEE INSTRUCTIONS ON PAGE 2 –

There is a \$250 penalty for repeated failure to file accident reports within 28 days of the date the employer is informed of the accident. **Submission does not constitute admission of liability.**

Send this completed form to your insurer, third party administrator or pool association for submission electronically to the Division of Workers Compensation.

Direct questions or comments to:
Toll free (800) 332-0353

OSHA Case or File Number _____

1. Federal Employer's Identification Number 91-1045678 Date of hire 2021-08-16

2. Name of employer Pacific Builders, Inc. Phone (206) 555-0142

3. Mailing address 2201 4th Ave, Suite 500, Seattle, WA, 98121
Street City State ZIP

4. Location, if different from mailing address 7421 Greenwood Ave N, Seattle, WA, 98103
Street City State ZIP

5. Nature of business Light commercial construction NAICS or S.I.C. Code 236118 Dept. or division Field Operations

6. Name of employee John A. Smith Age 38 Sex Male
First Middle Last

7. Home address 812 NE 80th St, Seattle, WA, 98115
Street City State ZIP

8. SSN 555-23-0198 Birth date 1986-02-15 Employee's occupation Lead Carpenter Home phone (206) 555-0174

9. Date of injury or occupational disease 2024-02-20 Time of injury 09:15:00 a.m. / p.m.
Date reported to employer 2024-02-21 Date disability began 2024-02-21 Gross average weekly wage \$1230.75

10. Place of accident or last exposure Seattle, King, WA
City County State

11. Was accident or last exposure on employer's premises? ☐ YES ☒ NO

12. How did accident occur? While carrying an aluminum extension ladder across a client ' s driveway at a residential job site, the employee stepped on black ice, slipped, and twisted his left ankle as he fell to the ground.

13. What was employee doing when injured? Transporting an 8-foot extension ladder from the truck to the work area to begin exterior trim repairs.

14. Name substance or object that directly caused injury * Aluminum extension ladder and icy pavement

15. Describe in detail nature and extent of injury, indicate part of body involved * Acute left ankle sprain with suspected hairline fracture; significant swelling and tenderness over the lateral malleolus. Bruising to left hip from impact with ground.

16. Was worker admitted to hospital? ☐ YES ☒ NO Date _____ Treated by emergency room only? ☒ YES ☐ NO
Hospital name and address UW Medicine Northwest Hospital – Emergency Department, 1550 N 115th St, Seattle, WA 98133

17. Name and address of attending physician or clinic Dr. Emily Chen,
Orthopedic Associates of Seattle, 2409 N 45th St, Seattle, WA 98103

18. Has employee returned to regular duty? ☐ YES ☒ NO Light duty? ☒ YES ☐ NO Date 2024-03-04

19. Is compensation now being paid? ☒ YES ☐ NO Date first/initial payment 2024-02-28

20. Weekly compensation rate \$820.50 Is further medical aid needed? ☒ YES ☐ NO ☐ UNKNOWN

21. Did employee die? ☐ YES ☒ NO If YES, give date of death _____ (File amended report within 28 days if death subsequently occurs.)

22. Name(s) and address(es) of dependents (death cases only) _____

23. Insurance carrier and third party administrator Summit Insurance Company (TPA: Northwest Claims Services)
Address 500 Pine St, Suite 1200, Seattle, WA, 98101 Phone (206) 555-0190
Street City State ZIP
Policy number SIC123456789 Name of agent Laura Nguyen
Claim number SIC-CLM-240220-001 Name of claim representative Michael Ortiz

24. Date of report 2024-02-22 Completed by Sarah Davis Title HR Manager

FOR OFFICE USE	
COUNTY	
CAUSE	
NATURE	
SEVERITY	0 - NO TIME LOST 1 - TIME LOST 2 - MEDICAL 3 - FATAL
SOURCE	
MEMBER	

Instructions

You must answer every question; failure to answer all questions may cause the report to be returned to the employer. Returned accident reports may cause a delay of benefits to the injured employees and could subject the employer to fines.

The employer must send this accident report to its insurance carrier, third party administrator or pool association for electronic submission to the Kansas Department of Labor Division of Workers Compensation.

*Instructions for Questions 14 and 15

- 14: Name the object or substance which directly injured the employee. Example: machine or object employee struck or struck employee; vapor or poison employee inhaled or swallowed; chemicals or radiation which irritated employee's skin; if hernia, the object employee was lifting or pulling; etc.
- 15: Be as specific as possible indicating all that is known about the injury. Name the part of body injured.

Definition of an Incapacitating Injury

The Workers' Compensation Act sets forth a strict time frame for filing accident reports with the division. The controlling statute is K.S.A. 44-557(a), which reads as follows:

(a) it is hereby made the duty of every employer to make or cause to be made a report to the director of any accident, or claimed or alleged accident, to any employee which occurs in the course of the employee's employment and of which the employer or the employer's supervisor has knowledge, which report shall be made upon a form to be prepared by the director, within 28 days, after the receipt of such knowledge, if the personal injuries which are sustained by such accidents are sufficient wholly or partially to incapacitate the person injured from labor or service for more than the remainder of the day, shift or turn on which such injuries were sustained.

Accident reports are not required for every work-related injury. The statute requires a report to be filed when the worker's whole or partial incapacity continues beyond the "day, turn, or shift which such injuries are sustained" as the result of accident. "Incapacity" is not specifically defined within the law, but the division believes that the Legislature's intent was to reference a worker's whole or partial loss of the ability to perform his or her ordinary job tasks. When in doubt, keep in mind the law contains no penalty for filing a report that ultimately proves to be unnecessary. **There are penalties, however, for failing to file a report when one was required.** The penalties include fines and limitations on the defenses the employer may assert if a claim is filed.

OSHA Recordkeeping

The employer must complete an Injury and Illness Incident Report, OSHA Form 301, within seven (7) days of learning that a work-related injury or illness has occurred. According to OSHA's recordkeeping rule, you must keep Form 301, or an equivalent substitute on file for five (5) years.

To learn more about OSHA's recordkeeping requirements and download forms, visit:
www.osha.gov/recordkeeping/RKforms.html